

SENATE No. 2446

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting motor vehicle safety.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 2446

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 2446) of Bruce E. Tarr for legislation to promote motor vehicle safety and habitual offenders. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2294 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting motor vehicle safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22F of chapter 90 of the General Laws is hereby amended by
2 striking out, in line 60, the word “four” and inserting in place thereof the following word:-
3 “five”.

4 SECTION 2. Section 22F of said chapter 90, as so appearing, is hereby further amended
5 by striking out, in lines 69-72, the following sentence:-

6 “An appeal to the superior court may be had, in accordance with the provisions of chapter
7 thirty A, from any order of the registrar of motor vehicles made under the provisions of this
8 section.”

9 SECTION 3. Section 22F of said chapter 90 is hereby further amended by inserting at the
10 end thereof the following paragraph:-

11 “Any person previously deemed an habitual offender under this section who has not had
12 their license or right to operate a motor vehicle restored to them by the registrar for a period of
13 more than 5 years and who is convicted of operating a motor vehicle while under the influence of
14 intoxicating liquor or narcotic drugs in violation of paragraph (a) of subdivision (1) of section
15 24; operating a motor vehicle recklessly or negligently so that the lives and safety of the public
16 might be endangered; making a false statement in an application for a learner’s permit or motor
17 vehicle operator’s license or in an application for a registration of a motor vehicle; going away
18 without making known his name, residence and the registration number of his vehicle after
19 knowingly colliding with or otherwise causing injury to any person, other vehicle or property, all
20 in violation of paragraph (a) of subdivision (2) of section 24; operating a motor vehicle after
21 suspension or revocation of the person’s motor vehicle operator’s license or his right to operate
22 motor vehicles in violation of section 23; operating a motor vehicle without a license in violation
23 of section 10; or the commission of any felony in the commission of which a motor vehicle is
24 used, shall be deemed a level 3 habitual traffic offender and the registrar shall immediately
25 revoke such person’s license or right to operate and shall not issue a new license or reinstate the
26 right to operate for a period up to life but not less than 5 years from the date of revocation, nor
27 until such person has satisfactorily completed a driver improvement course approved by the
28 registrar and has passed such examination as to his competence to operate motor vehicles as the
29 registrar may require.

30 Any person previously deemed an habitual offender under this section who has not had
31 their license or right to operate a motor vehicle restored to them by the registrar for a period of
32 more than 5 years and who is convicted of 3 or more convictions of offenses which are required
33 by any provision of law to be reported to the registrar and for which the registrar is authorized or

required to suspend or revoke the person's license or right to operate motor vehicles for a period of 30 days or more, shall be deemed a level 2 habitual offender and the registrar shall immediately revoke such person's license or right to operate and shall not issue a new license or reinstate the right to operate to such person for a period of not less than 5 years from the date of revocation nor more than 15 years from such date of revocation, nor until such person has satisfactorily completed a driver improvement course approved by the registrar and has passed such examination as to his competence to operate motor vehicles as the registrar may require.

Provided further, that any person previously deemed a level 2 habitual offender under this section who has not had their license or right to operate a motor vehicle restored to them by the registrar for a period of 5 years and is convicted of operating a motor vehicle while under the influence of intoxicating liquor or narcotic drugs in violation of paragraph (a) of subdivision (1) of section 24; operating a motor vehicle recklessly or negligently so that the lives and safety of the public might be endangered; making a false statement in an application for a learner's permit or motor vehicle operator's license or in an application for a registration of a motor vehicle; going away without making known his name, residence and the registration number of his vehicle after knowingly colliding with or otherwise causing injury to any person, other vehicle or property, all in violation of paragraph (a) of subdivision (2) of section 24; operating a motor vehicle after suspension or revocation of the person's motor vehicle operator's license or his right to operate motor vehicles in violation of section 23; operating a motor vehicle without a license in violation of section 10; or the commission of any felony in the commission of which a motor vehicle is used; or 2 or more convictions of offenses which are required by any provision of law to be reported to the registrar and for which the registrar is authorized or required to suspend or revoke the person's license or right to operate motor vehicles for a period of 30 days

57 or more, shall be deemed a level 3 habitual offender and the registrar shall immediately revoke
58 such person's license or right to operate and shall not issue a new license or reinstate the right to
59 operate for a period up to life but not less than 5 years from the date of revocation, nor until such
60 person has satisfactorily completed a driver improvement course approved by the registrar and
61 has passed such examination as to his competence to operate motor vehicles as the registrar may
62 require. The registrar may revoke from any level 3 habitual offender who has had their license or
63 right to operate restored and who commits an automobile law violation, as defined in section 1 of
64 chapter 90C, the license or right to operate for a period up to life. The registrar may further issue
65 to any habitual traffic offender who has satisfied the durational license revocation requirements
66 provided for in this section a new license or reinstate such person's right to operate under such
67 terms and conditions as the registrar deems appropriate and necessary. Nothing in this section
68 shall limit the authority of the registrar to revoke a license or right to operate or issue a new
69 license or reinstate the right to operate under section 24 of chapter 90. An appeal to the superior
70 court may be had, in accordance with the provisions of chapter 30A, from any order of the
71 registrar of motor vehicles made under the provisions of this section."